

THE PORT AUTHORITY OF NY & NJ

Law Department

*4 World Trade Center
150 Greenwich Street
New York, NY 10007*

November 20, 2019

Via FedEx Express & Email: secretary@fmc.gov

Rachel Dickon, Secretary
Federal Maritime Commission
800 N. Capitol Street, NW
Washington, D.C 20573

**Re: Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority
Docket No.: 17-07
Our Matter No.: 201711889**

Dear Ms. Dickon:

I represent The Port Authority of New York and New Jersey (the "Port Authority"). Pursuant to your instructions, I am submitting the enclosed motion for dismissal of this action pursuant to 46 C.F.R. § 501.72(a)(3). To that end, enclosed please find an original and five copies of the following:

- Notice of motion
- Certification of Juan M. Barragan with accompanying exhibits
- Affidavit of service

Very truly yours,



Juan M. Barragan
Attorney
Law Department
Tel. No.: (212) 435-3529
Fax No.: (212) 435-3834

Enclosures

cc: Donald F. Burke, Esq. (via FedEx Express & email: donaldburkeesq@gmail.com w/ encl.)
Paul Donovan, Esq. (via FedEx Express & email: paul.donovan@laroelaw.com w/ encl.)

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

NOTICE OF MOTION

MOTION BY: The Port Authority of New York and New Jersey.

DATE, TIME & PLACE OF HEARING: As set forth by the presiding officer.

SUPPORTING PAPERS: Certification of Juan M. Barragan with accompanying exhibits.

RELIEF REQUESTED: An order by the presiding officer dismissing this action, with prejudice, pursuant to 46 C.F.R. § 507.72(a)(3).

ANSWERING AFFIDAVITS: A response must be served within 15 days after the date of service of this motion pursuant to 46 C.F.R. § 502.70(b).

Dated: New York, New York
November 20, 2019

PORT AUTHORITY LAW DEPARTMENT
*Attorneys for The Port Authority of New York
and New Jersey*

By: 

Juan M. Barragan

To: Donald F. Burke, Esq.
Law Office of Donald F. Burke
45 Gale Road
Brick, NJ 08723

Paul M. Donovan, Esq.
La Roe Winn Moerman & Donovan
1250 Connecticut Ave NW, Suite 700
Washington, DC 20036

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

CERTIFICATION OF JUAN M. BARRAGAN

I, Juan M. Barragan, of full age, hereby certify:

1. I am an attorney-at-law and responsible for handling this matter on behalf of The Port Authority of New York and New Jersey (the "Port Authority"). I am fully familiar with the circumstances set forth herein based upon my review of the file maintained by my office.

2. I submit this certification in support of the Port Authority's motion for an order dismissing this action, with prejudice, pursuant to 46 C.F.R. § 507.72(a)(3).

3. On September 9, 2019, Port Elizabeth Terminal & Warehouse ("PETW") and the Port Authority entered into a mutual general release (the "Agreement"). A true and correct copy of the Agreement is annexed hereto as Exhibit ("Ex.") A.

4. In consideration of the Agreement, the Port Authority agreed to forgive the rents and other charges that PETW owed to the Port Authority pursuant to the terms of the lease agreement, Lease No. LPN-297 (the "Lease"), that the parties entered into on November 1, 2009. (Ex. A, p. 1-2).

5. In consideration of the Agreement, PETW agreed to pay the Port Authority the sum of \$500,000 in installments and voluntarily discontinue the present action with prejudice. (Ex. A, p. 2).

6. PETW also agreed to vacate and peacefully deliver possession of the Building 173 Annex and Open Area (collectively the "Space") to the Port Authority within 90 days of execution of the Agreement. (Ex. A, p. 1-2).

7. In the Agreement, the parties mutually agreed "to terminate the Lease effective as of October 31, 2019 at 11:59 p.m. as set forth on the Lease; notwithstanding this, the Port Authority will allow for PETW to remain at the Space until the Departure Date and PETW agrees to yield and peacefully deliver possession of the Space to the Port Authority on or before 11:59 p.m. on" December 18, 2019. (Ex. A, p. 2).

8. In furtherance of the Agreement, the parties executed a stipulation of discontinuance of this matter with prejudice. Annexed hereto as Ex. B is a true and correct copy of the stipulation of discontinuance.

9. Whenever the parties enter into a settlement agreement, 46 CFR § 507.72(a)(3) requires the filing of a motion "for determination [by the presiding officer] as to whether the settlement appears to violate any law or policy and to ensure the settlement is free of fraud, duress, undue influence, mistake, or other defects which might make it unapprovable."

10. As set forth above, and as evidenced by the Agreement, the settlement does not violate any law or policy.

11. In addition, the parties entered into the Agreement free of any fraud, duress, undue influence, or mistake.

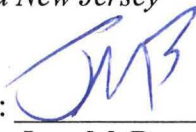
12. Based on the foregoing, I respectfully request that the Commission approve the

terms of the parties' settlement set forth in the Agreement and enter an order dismissing this action with prejudice.

I certify that the foregoing statements are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

Dated: New York, New York
November 20, 2019

PORT AUTHORITY LAW DEPARTMENT
*Attorneys for The Port Authority of New York
and New Jersey*

By: 

Juan M. Barragan

EXHIBIT A

Mutual General Release

This mutual general release dated September 9, 2019 (the "Agreement") by and between Port Elizabeth Terminal & Warehouse Corp. ("PETW") and The Port Authority of New York and New Jersey (the "Port Authority") (collectively the "Parties").

Recitals

WHEREAS on November 1, 2009, PETW and the Port Authority entered into a written agreement of lease designated as Lease No. LPN-297 (the "Lease"), pursuant to which, the Port Authority leased to PETW certain premises in Port Newark, which included, but was not limited to, the enclosed space shown in cross-hatching and the associated open areas shown in stipple on the sketch, which is made part hereof and annexed hereto as Exhibit 1 ("Building 173 Annex") and the open area shown in cross-hatching on the sketch, which is made part hereof and annexed hereto as Exhibit 2 (the "Open Area").

WHEREAS disputes and differences have arisen between the Parties concerning the Lease; some of the disputes and differences are reflected in the action filed with the Federal Maritime Commission titled, *Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority of New York and New Jersey*, Docket No.: 17-07 (the "FMC Action").

WHEREAS disputes and differences have arisen between the Parties resulting in PETW remaining in possession of the Building 173 Annex and the Open Area (collectively the "Space") without paying rent.

WHEREAS disputes and differences have arisen between the Parties resulting in PETW failing to pay rents and other sums as required by the Lease.

WHEREAS, the Parties desire to fully and finally resolve and settle the FMC Action and all other disputes and differences between them pursuant to the terms and conditions set forth in this Agreement.

Terms of the Agreement

NOW, THEREFORE, in consideration of the foregoing recitals and of the conditions, covenants, and agreements set forth below, the amount and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Mutual Release

The Parties on behalf of themselves, and all persons or entities claiming by, through or under them, and their respective heirs, successors, and assignees, hereby fully, completely, and finally waive, release, remise, acquit, and forever discharge and covenant not to sue, initiate a legal action or proceeding against any of the Parties, as well as the Parties' respective officers, directors, commissioners, shareholders, trustees, parent companies, sister companies, affiliates, subsidiaries, employers, employees, attorneys, accountants, predecessors, successors, insurers, guarantors, representatives, and agents with respect to any and all claims, counterclaims, demands, suits,

manner of obligation, debt, liability, tort, covenants, contracts, or causes of action that the Parties asserted or could have asserted against each other, including, but not limited to, those that were asserted or could have been asserted in the FMC Action, or that arise out of, concern, and/or relate to the Lease, including any guarantee that arises out of, concerns, and/or relates the Lease. The Parties warrant and represent that they have not assigned or otherwise transferred any claim or cause of action released by this Agreement.

2. *Consideration*

In consideration of this Agreement, PETW agrees to voluntarily discontinue the FMC Action with prejudice.

In consideration of this Agreement, PETW agrees to vacate and peacefully deliver possession of the Space to the Port Authority within ninety (90) days of execution of this Agreement (the "Departure Date"). The date of execution of this Agreement shall be the date in the first sentence of the first page of this Agreement. PETW also agrees to deliver the Space to the Port Authority in good condition and not cause any damage to the Space while removing any of its property, which may be located therein.

In consideration of this Agreement, PETW agrees to pay the Port Authority the sum of five hundred thousand dollars and zero cents (\$500,000.00), of which, ten thousand dollars and zero cents (\$10,000.00) shall be paid within 14 days from the date of execution of this Agreement, and seventy thousand dollars and zero cents (\$70,000.00) shall be paid within 75 days from the date of execution of this Agreement. The date of execution of this Agreement shall be the date in the first sentence of the first page of this Agreement.

The remaining balance will be paid in 36 equal monthly installments of eleven thousand six hundred sixty-six dollars and sixty-seven cents (\$11,666.67) beginning on the month that immediately follows the month on which the payment of \$70,000.00 was made; each monthly installment shall be due on the fifth day of each and every month that follows. For example, if the \$70,000.00 payment is made in December 2019, the monthly installment payments will begin in January 2020, with the first payment of \$11,666.67 being due on or before January 5, 2020; the next monthly installment of \$11,666.67 will be due on or before February 5, 2020, and so on, until 36 consecutive monthly installments, each of \$11,666.67 have been made. Payment shall be made via wire transfer or mailed to the Port Authority's attention to: P.O. Box 95000, Philadelphia, PA 19195-1517. In the event that payment is made via mail, the envelope containing the payment shall be postmarked no later than the fifth day of each respective month.

In consideration of this Agreement, the Port Authority agrees to forgive the rents and other charges that PETW currently owes the Port Authority pursuant to the Lease.

3. *Termination of the Lease*

The Parties mutually agree to terminate the Lease effective as of October 31, 2019 at 11:59 p.m. as set forth on the Lease; notwithstanding this, the Port Authority will allow for PETW to remain at the Space until the Departure Date and PETW agrees to yield and peacefully deliver possession of the Space to the Port Authority on or before 11:59 p.m. on the Departure Date.

4. *No Admission of Liability*

The execution of this Agreement shall not be construed as an admission of liability or fault by any of the Parties; any and all liability is expressly denied by all the Parties.

5. *Consultation with Counsel*

The Parties acknowledge that they have been represented by counsel of their own choice in the negotiations leading to the execution of this Agreement, and that they have read this Agreement and have had it fully explained to them by their counsel.

6. *Costs, Expenses, and Attorneys' Fees*

Each of the Parties will bear its own costs, expenses, and attorneys' fees incurred in connection with, or arising out of, the FMC Action.

7. *Governing Law and Jurisdiction*

The laws of the State of New York shall apply to and control any interpretation, construction, performance, or enforcement of this Agreement.

8. *Merger Clause*

This Agreement contains the entire understanding of the Parties, and there are no representations, warranties, covenants, or undertakings other than those expressly set forth herein.

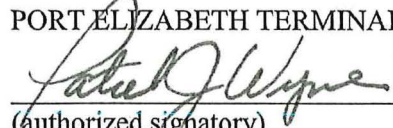
9. *Counterparts/Execution*

The Parties agree that this Agreement may be executed in counterparts, each of which shall constitute an original and binding copy of this Agreement, albeit one and the same instrument. Executed photocopies of this Agreement shall be as binding as the original. This Agreement cannot be orally changed. Whenever the text hereof requires, the use of a singular number shall include the appropriate plural number as the text of the within instrument may require.

Execution

IN WITNESS WHEREOF, the Parties have executed this Agreement on the date above-first written.

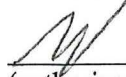
PORT ELIZABETH TERMINAL & WAREHOUSE CORP.


(authorized signatory)

Name: PATRICK J. WYNN

Position/Title: President

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY



(authorized signatory)

Name: MICHAEL FARKAS

Position/Title: General Counsel



Linda C. Handel

Secretary

STATE OF N.J.)
) ss:
COUNTY OF Middlesex)

On this 6 day of September, 2019, Patrice J. Wyman personally came before me and stated under oath to my satisfaction that:

1. This person was the subscribing witness to the signing of the attached instrument;
2. This person was fully authorized to and did execute this instrument as the act of the entity; and,
3. The subscribing witness signed this instrument under oath to attest, to the truth of these facts.

Janet Temchus
Notary Public

Janet Temchus
Notary Public of New Jersey
ID#2417619
My Commission Expires 2/22/2022

STATE OF New York)
) ss:
COUNTY OF New York)

On this 16th day of September, 2019, Michael Farbiarz personally came before me and stated under oath to my satisfaction that:

1. This person was the subscribing witness to the signing of the attached instrument;
2. This person was fully authorized to and did execute this instrument as the act of the entity; and,
3. The subscribing witness signed this instrument under oath to attest, to the truth of these facts.

Elaine McFarlane
Notary Public

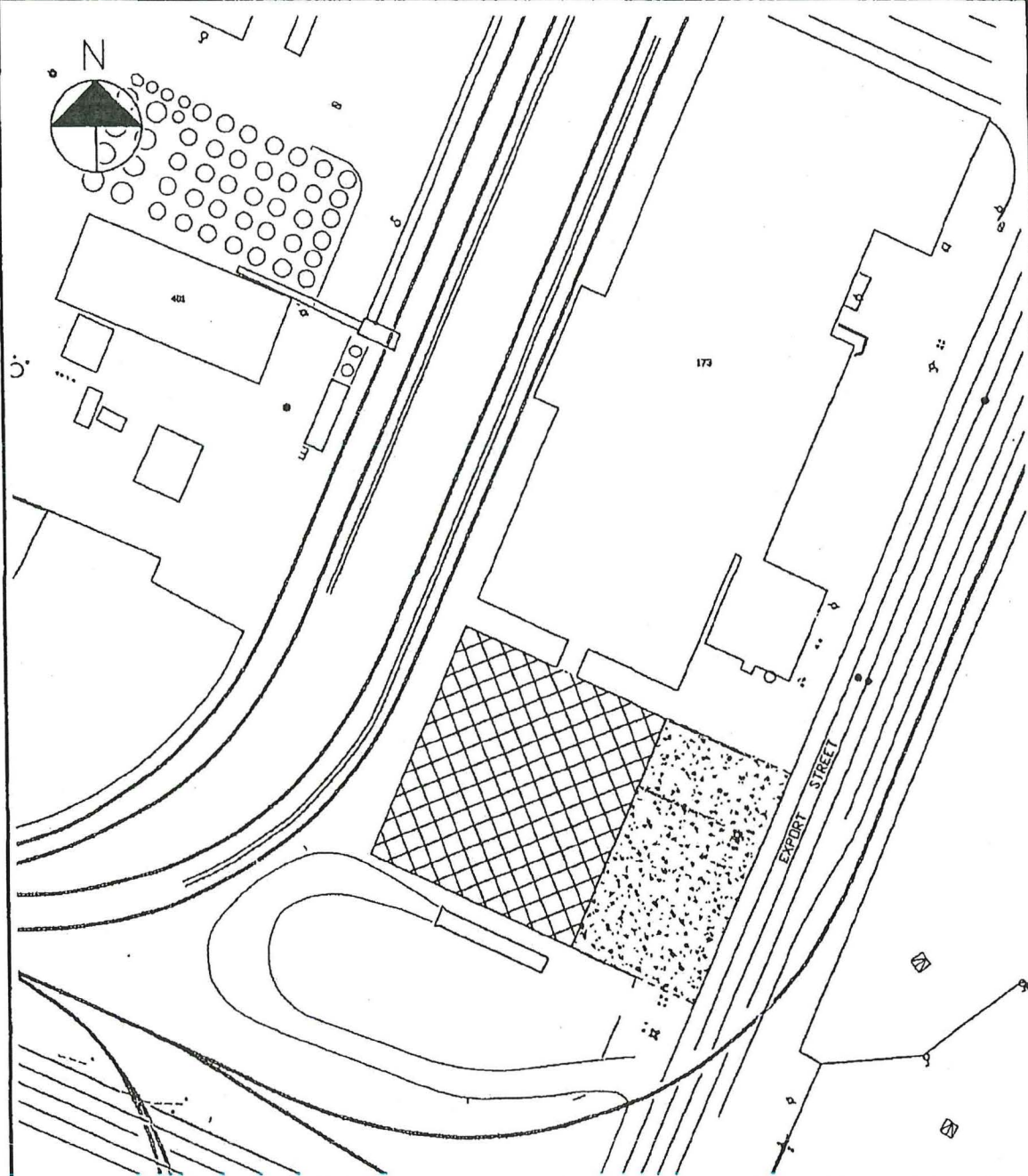
ELAINE McFARLANE
Notary Public - State of New York
No. 01MC6005820
Qualified in BRONX
My Commission Expires APRIL 20, 2018

2022

EXHIBIT 1

PORT ELIZABETH TERMINAL WAREHOUSE CORP.

LPN-297



Initialed:

aml

For the PORT AUTHORITY

ppw

For the Lessee

EXHIBIT :

A-4

THE PORT AUTHORITY OF NY & NJ

PORT NEWARK

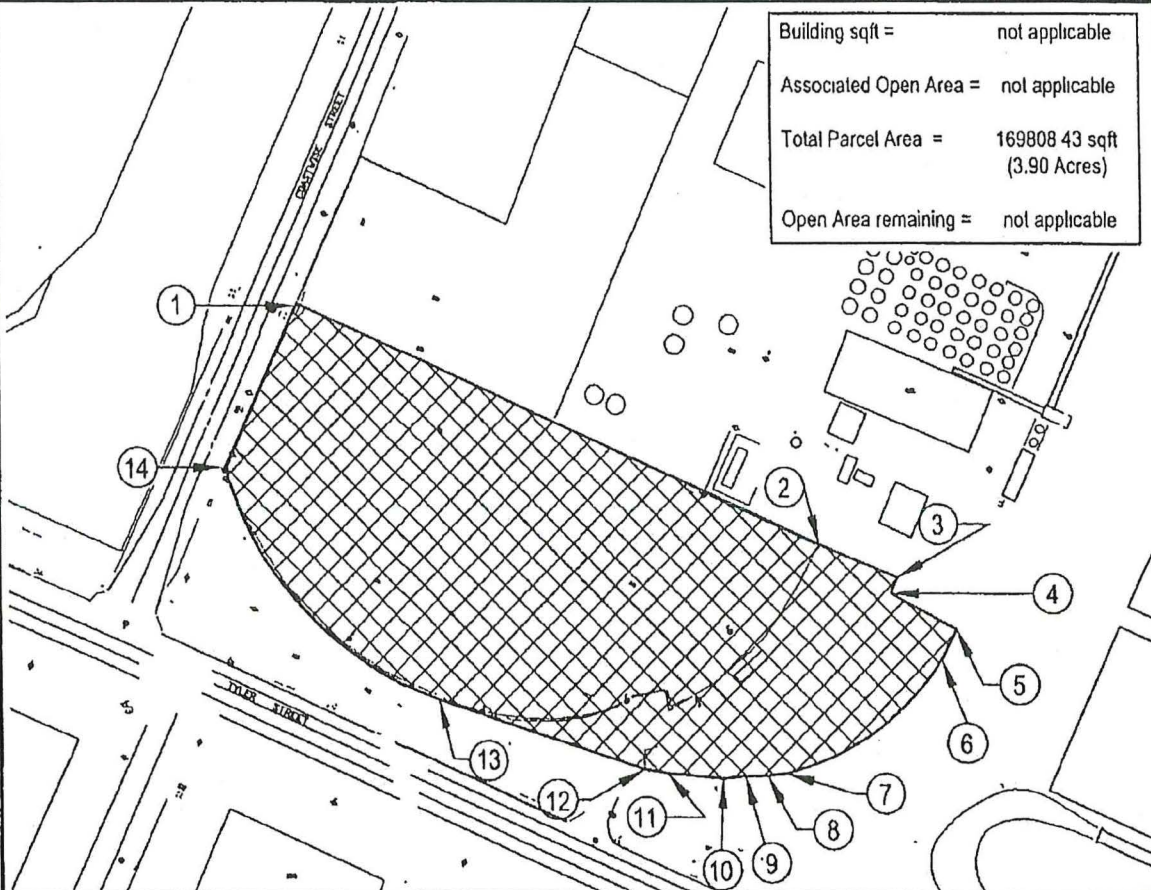
Date : November 1, 2009

EXHIBIT 2

PORT ELIZABETH TERMINAL
& WAREHOUSE CORPORATION

LPN-297

Building sqft = not applicable
Associated Open Area = not applicable
Total Parcel Area = 169808.43 sqft
(3.90 Acres)
Open Area remaining = not applicable



Metes and Bounds:

Coordinate system - NAD 1983

Point No.	Distance	Bearing	Northerly Coordinate	Easterly Coordinate	Point No.	Distance	Bearing	Northerly Coordinate	Easterly Coordinate
1			677178.09	590110.21	8			676736.15	590561.20
	550.19'	S 65°46'45" E				21.83'	S 89°30'15" W		
2			676952.67	590612.10	9			676735.96	590539.38
	82.05'	S 67°25'54" E				20.80'	S 82°47'43" W		
3			676921.18	590687.87	10			676733.36	590518.74
	16.26'	S 22°16'23" W				54.04'	N 84°10'25" W		
4			676906.13	590681.70	11			676738.84	590464.98
	71.87'	S 62°13'24" E				22.14'	N 80°59'24" W		
5			676872.64	590745.29	12			676742.31	590443.11
	31.92'	S 27°16'58" W				208.55'	N 71°57'30" W		
6			676844.26	590730.66	13			676806.90	590244.81
	Arcl=189.31'	R= 252.76'				Arcl=310.45'	R= 320.46'		
7			676738.35	590579.07	14			677023.72	590039.72
	18.01'	S 82°59'26" W				169.71'	N 24°32'36" E		
								(return to point 1)	

Initialed:

AME
For the PORT AUTHORITY
PJW
For the Lessee

EXHIBIT :

A-5

THE PORT AUTHORITY OF NY & NJ

PORT NEWARK

Date : NOV. 1, 2009

EXHIBIT B

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

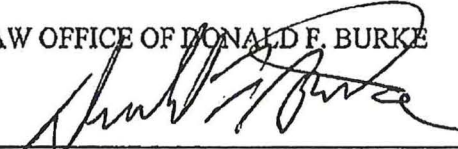
RESPONDENT

STIPULATION OF DISMISSAL WITH PREJUDICE

It is hereby stipulated and agreed by and among the undersigned, attorneys of record for the respective parties herein, that the above-entitled action is hereby dismissed in its entirety, with prejudice, without costs or disbursements to any party as against the other. The parties certify that no settlement on the merits was reached. It is also stipulated and agreed upon by the undersigned that the Federal Maritime Commission shall retain jurisdiction over this action for purposes of enforcing the terms and conditions of the mutual general release dated as of September 9, 2019.

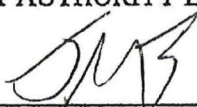
Dated: October 30, 2019

LAW OFFICE OF DONALD F. BURKE



Donald F. Burke
*Attorney for Port Elizabeth Terminal &
Warehouse Corp.*
45 Gale Road
Brick, NJ 08723

PORT AUTHORITY LAW DEPARTMENT



Juan M. Barragan
*Attorney for The Port Authority of New York
and New Jersey*
4 World Trade Center
150 Greenwich Street, 24th Floor
New York, NY 10007

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RESPONDENT

AFFIDAVIT OF SERVICE

Alexandra L. Priest, being duly sworn, deposes and says:

That I am a secretary in The Port Authority of New York and New Jersey Law Department and am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.

That on the 20th day of November, 2019 I served the annexed **MOTION TO DISMISS** upon:

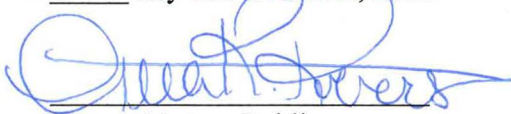
Donald F. Burke, Esq.
Law Office of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723

Paul M. Donovan, Esq.
LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue N.W., Suite 700
Washington, D.C. 20036

by depositing a true copy thereof in a sealed wrapper, in a depository maintained by Federal Express to be shipped via Federal Express Overnight Service at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.



Sworn to before me this
20th day of November, 2019


Notary Public

Alea K. Roberts
Notary Public, State of New York
No. 01RO6381227
Qualified in New York County
Commission Expires on October 1, 2022